# ZARA PRIVACY POLICY

Effective Date: September 21, 2021

Last Updated: January 1, 2023

## Applicability

This Privacy Policy describes how ZARA USA, INC. treats customer personal information on the websites, social media and mobile apps where it is located (in this policy we call these our Platforms). This policy also applies to information collected in our stores. Your use of this Platform indicates you agree to our collection, use and disclosure of your information as described in this Privacy Policy.

## Notice at Collection

### We collect information from and about you.

We collect various types of information from you, as described below. California law requires us to tell you if we share information for cross-contextual behavioral advertising. Described below by category is the information we may collect and if we share it for cross-contextual behavioral advertising. To learn how to modify your cross-contextual advertising preferences view our Notice of Right to Opt-out of Sharing for Cross-Contextual Behavioral Advertising.

**We collect contact information.** For example, we collect personal identification data, online or in person, among other purposes, to manage your registration as a user, to manage your purchases of products or services, to respond to your queries, and, if you wish, to send you our customized including name, mailing address, email addresses and phone numbers. If you register as a user, we will also have you create a password. In some cases, we may share this information for the purpose noted above.

**We collect payment information.** If you buy products or services we will collect the relevant data, online or in person, as your debit or credit card number to manage payment of the products or services that you purchase, regardless of the method of payment used.

**We collect information you submit online.** This includes information you post when you interact with us on social media platforms. In some cases, we may share this information for the purpose noted above.

**We collect demographic information and information about product preferences.** This includes collecting your age and gender. In some cases, we may share this information for the purpose noted above.

**We collect biometric information**. We may collect biometric information as permitted by law. This includes information collected as part of virtual try-on experiences such as a body or face scan to provide you with product suggestions. This may also include if you decide to pay with your palm print in locations that offer it. This information is kept for the duration of your use of the service.

**We collect information about your device and location.** We collect the type of device you use and location to access our Platforms, including the access and use of the Wi-Fi that we make available to our customers at our stores. We also collect information about the type of browser you are using. And, we may look at what site you came from or what site you go to when you leave us. If you are using our apps, we may also collect your device identification number or the advertising ID. If you use our app, we may look at how often you use the app and where you downloaded it. If you use any of the specific services that we may offer you (such as item finder, reserve a fitting room, etc.) available in some of our stores, we also may

process your location and contact information. In some cases, we may share this information for the purpose noted above.

**We collect information about your use of the Platforms.** This includes browsing activity, how you interact with our websites and mobile apps, the products that you buy, and search terms entered. In some cases, we may share this information for the purpose noted above.

We do not use or disclose sensitive personal information, as defined by California law, for inferring characteristics or for purposes other than those permitted by law. We keep personal information as long as it is necessary or relevant for the practices described in this Policy. We also keep information as required by law.

## We use information as disclosed and described here.

**We use your information to provide you with products and services.** This includes sending you product you purchase or processing a return. It also includes sending you newsletters you signed up to receive and/ push notifications or SMS if authorized.

**We use information to improve our products and Platforms.** We may use your information to make our Platforms or products better. We may also use your information to customize your experience with us. This includes understanding your interests and preferences.

**We use your information to respond to your requests**. This includes responding to customer inquiries.

**We use your information to communicate with you about our relationship.** We may communicate with you about your account or our relationship. This includes electronic messages (as SMS or push notifications) and calls about order status. We may also contact you about this Policy or our Platform Terms & Conditions.

**We use your information for marketing purposes.** We may provide you with information about new products and special offers. We may also serve you ads, personalized or not, about products and offers. We might tell you about new features or updates. These might be third party offers or products we think you might find interesting. For more information about your choices see the Choices section below.

**We use information for security and fraud prevention purposes.** We may use your information to protect our company and our customers. We also use information to protect our websites and apps.

**We use information as otherwise permitted by law or as we may notify you.**

## More Information

For more information about our privacy practices, read below for the rest of our privacy policy.

# We collect information from you in different ways.

**We collect information directly from you, online or offline.** This includes when you create an account or to manage your purchases of products or services. We also collect information if you contact customer service to respond to your queries or sign up for our newsletter to send you our customized communications. We also collect information when you take a survey or participate in a promotion.

**We collect information passively.** We use tracking tools like browser cookies and web beacons. To learn more about cookies visit the FTC's Online Tracking page. We use these tools on our websites and in emails we send to you. We may also use these tools in our mobile apps. We collect information about users over time when you use our Platforms. We have third parties who collect information this way as well.

**We get information about you from third parties**. This includes social media platforms and friends who use our "email a friend" feature. We may receive information about you from other sources.

## We combine information we collect from different sources.

We combine offline and online information. We also combine information across multiple devices. We also combine information we get from a third party with information we already have about you.

## We disclose information as described here.

**We provide information with our affiliated organizations and parent company.** This includes our affiliates and Industria de Diseño Textil, S.A. (Inditex, S.A.), the parent company of the Inditex Group, which is the holding group associated with ZARA. It also includes ITX USA LLC. We may share with ITX USA LLC if you make purchases from ZARA HOME or MASSIMO DUTTI so that we can complete your purchase.

**We may disclose information with third parties who perform services for us**. We share information with payment processors. We also share information with advertising and marketing service providers that, for example send emails on our behalf.

**We may share information for cross-contextual behavioral advertising.** We may share information with third parties in order to provide cross-contextual behavioral advertising. In the Notice at Collection (above) we outlined which categories of information are shared for cross-contextual behavioral advertising.

**We may transfer information with any successor to all our part of our business.** For example, if ZARA is sold we may give a customer list as part of that transaction.

**We will disclose information if we think we have to in order to comply with the law or to protect ourselves.** This could include responding to a court order or subpoena. It could also include sharing information if a government agency or investigatory body requests. We might share information when we are investigating a potential fraud. This could include fraud we think has occurred during a sweepstakes or promotion. We may also share information if you are the winner of a sweepstakes or other contest with anyone who requests a winner's list.

**We may disclose information for other reasons we may describe to you.**

**Additional information for residents of certain jurisdictions**. Certain states, like California, Nevada, and Virginia require that we tell you if we sell personal information with a third party for monetary or (in California) other valuable consideration. We do not do this. We also do not sell personal information of minors under the age of 16 for monetary or other valuable consideration.

## You have certain choices about how we use your information.

**You can opt out of receiving our marketing emails.** To stop receiving our promotional emails follow the instructions in any promotional message you get from us. Even if you opt out of getting marketing messages, we will still send you transactional messages. These include responses to your questions.

**Shine the Light.** Under California law, our Customers who are residents of California may request certain information about our disclosure of personal information during the prior calendar year to third parties for their direct marketing purposes. To make such a request, please contact us in the "you can contact us" section below. Mark your message "Shine the Light."

**OUR COOKIE AND AD POLICY**

**You can control cookies and tracking tools.** Your browser may give you the ability to control cookies or other tracking tools. How you do so depends on the type of tool. Certain browsers can be set to reject browser cookies. To control flash cookies, which we may use on certain websites from time to time, you can go to http://www.aboutads.info/choices/. Why? Because flash cookies cannot be controlled through your browser settings.

**Cross-contextual behavioral advertising.** To opt out of cross-contextual behavioral advertising, read our Notice of Right to Opt-out of Sharing below. Additionally, the Self-Regulatory Program for Online Behavioral Advertising provides consumers with the ability to manage certain choices online here and provides a tool for managing mobile choices here.

**Our Do Not Track Policy: Some browsers have "do not track" features that allow you to tell a website not to track you. These features are not all uniform. We do not currently respond to those signals.** If you block cookies, certain features on our sites may not work. If you block or reject cookies, not all of the tracking described here will stop.

**You can control tools on your mobile devices.** For example, you can turn off the Bluetooth, GPS locator, push notifications or your advertising ID in your phone settings.

***Options you select are browser and device specific.***

# Your Privacy Rights

If you live in California or Virginia or a state with similar rights, you have legal rights in addition to the choices listed above. You can call us at 1-855 635 9272 or email us at privacy.us@zara.com. Those rights are listed below:

1. **Access**: to learn the categories of information we collect and use, and for those in California, the categories of sources of collection and disclosure and the business purpose for collection;
2. **Portability:** a copy of (Virginia) or specific pieces of (California) personal information collected;
3. **Deletion**: to have us delete information we collected from you;
4. **Correction**: asking us to fix your information; and
5. **Non-retaliation**: not to be discriminated against for exercising a privacy right.

**How it works:** When you submit your request, we use information you provide to verify your request. We do this by matching the information you provide with information we already have about you. In some situations we may not be able to process your request. This may include if a legal exception applies. If you disagree with our decision you can contact us as described at the end of this policy.

**Nevada residents**: you may also opt out of the future sale of their information to a third party so that they may license or sell that information by emailing us at noted at the end of this notice.

**Third party agents**: If you are submitting a request on behalf of an eligible resident, we may ask for additional information to verify your identity. This may include providing proof that you are registered with the Secretary of State to act on someone's behalf or proof of a power of attorney. You may also submit a copy of the consumer's signed permission to submit the specific request.

**Notice of Right to Opt-out of Sharing for Cross-Contextual Behavioral Advertising**: You can opt out of the sharing of your personal information for cross-contextual behavioral advertising by clicking on Do not Sell or Share My Personal Information and toggle the button to "inactive" for cross-contextual behavioral advertising cookies. You can also configure your browser as we describe in this section. Some browsers or browser extensions also allow you to tell websites not to share your information for cross-contextual behavioral advertising through the "global privacy control" signal. We will respond to this signal in a frictionless manner. If you configure this setting on your browser, certain features on our site may not work and you will receive less targeted advertising. To learn how to configure this setting, view here.

# These sites are not intended for children.

Our Platforms are meant for adults. We do not knowingly collect personally identifiable data from children under 13. If you are a parent or legal guardian and think your child has given us information, you can write to us at the address listed at the end of this website Policy. Please mark your inquiries "COPPA Information

Request." Parents, you can learn more about how to protect children's privacy on-line visiting: https://consumer.ftc.gov/articles/protecting-your-childs-privacy-online

## We use reasonable security measures.

The Internet is not 100% secure. We cannot promise that your use of our Platform will be completely safe. We encourage you to use caution when using the Internet. A username and a password are needed to access certain areas of the ZARA Platforms. It is your responsibility to protect your username and password.

## We may link to platforms or have third party tools on our platforms we don't control.

If you click on a link to a third-party site, you will be taken to a site we do not control. We are not responsible for the privacy practices of third parties. This includes third parties who may have ads or content on our site. We suggest that you read their privacy policies carefully.

## You can contact us if you have questions.

If you have additional questions about our privacy practices you can email us at privacy.us@zara.com write to us at:

Attn: Privacy ZARA
USA INC

500 5th Avenue, Suite 400 New
York, NY 10110

For Zara Home or Massimo Dutti, you can contact us at the address above or at privacy.us@zarahome.com

or privacy.us@massimodutti.com.

## We may change this Policy.

From time to time, we may change our privacy policy. We will notify you of any material changes to our Policy as required by law. We will also post an updated copy on our Platforms. Please check our Platforms periodically for updates.